Muncie Policy Memo

Civic Meeting Report

Drainage Board Meeting - November 10th, 2026

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=DfYN0-oaZp8
Publication Date	2026-11-11T03:32:40Z
Target Category	delaware_county

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Comprehensive Meeting Summary Report

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called to order the Delaware County Drainage Board meeting on November 11th.
- **Attendance:**
  - **Members Present:** Mr. Whitehead, Mr. Chie (or Christie/Buffalo/Brook/Hamilton variants noted in roll calls), Mr. Buckle, Mr. Brook, Mr. Hamilton, Mr. Rigan.
  - **Presiding Officer:** Not explicitly stated by a single title, but managed collectively by board leaders and Surveyor Tom Borchers.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance.
- **Approval of Minutes:** The minutes of the October 14th meeting were approved by roll call vote (unanimous affirmative voice responses recorded via roll call).

4. Substantive Business & Board Action

- 00:04:32 **Table Business: Selma Ditch / Open Ditch**
  - **Sponsor / Presenter:** Board Discussion.

    - **Deliberation Summary:** The board discussed keeping an open ditch tabled because no communication had been received from attorneys or the town of Selma regarding when they plan to submit a request to make it a legal drain.
    - **Action & Vote Disposition:** Kept tabled by consensus.
- 00:16:25 **Bid Openings & Awards: Debrushing Projects (Ditches 1 through 10)**
    - **Sponsor / Presenter:** Tom Borchers, County Surveyor / Board.
    - **Deliberation Summary:** The board opened sealed bids from multiple contractors (JJC Excavating, JB Chapman, Butler Masonry, Coups Lawn and Landscaping, DigTek LLC, Brian Jackson) for ten different debrushing/ditch maintenance projects. Extensive debate occurred regarding DigTek LLC being the lowest bidder on multiple projects, with board members raising historical concerns about low-bidding contractors becoming overwhelmed (referencing the previous year's issues). Ultimately, the board decided to award a subset of projects to DigTek and other contractors to monitor capacity, while tabling decisions on several other ditches until the next meeting.
    - **Action & Vote Disposition:**
        - *No Name Creek No. 1:* Awarded to DigTek ($26,400). **Passed 5-0** (Roll Call: Whitehead - Yes, Hamilton - Yes, Commissioner - Yes, Christie - Yes, Buckle - Yes).
        - *Williams Creek No. 2:* Awarded to DigTek ($28,320). **Passed** (Roll Call: Whitehead - Yes, Rigan - Yes, Christie - Yes, Buckle - Yes).
        - *Love Ditch No. 3:* Motion to table until next meeting. **Passed 4-1** (Roll Call: Whitehead - Yes, Hamilton - Yes, Rigan - Yes, Buckle - No, [Fifth member] - Yes).
        - *Ferguson Ditch No. 4:* Motion to table until next meeting. **Passed** (Roll Call: Whitehead - Yes, Hamilton - Yes, Rigan - Yes, Christie - No, Buffalo - Yes).
        - *Boils Ditch No. 5:* Awarded to JJC Excavating ($8,840). **Passed** (Roll Call: Whitehead - Yes, Hamilton - Yes, Rigan - Yes, Christie - Yes, Buffalo - Yes).
        - *Elwood Reese Ditch No. 6:* Awarded to DigTek ($18,618). **Passed** (Roll Call: Whitehead - Yes, Christie - Yes, Bundle - Yes).
        - *McCollum Ditch No. 7:* Awarded to DigTek ($19,048). **Passed** (Roll Call: Whitehead - Yes, Wigan - Yes, Christie - Yes, Ruff - Yes).
        - *Wilhelm Ditch No. 8:* Motion to table until next meeting. **Passed** (Roll Call: Whitehead - Yes, Rean - Yes, Christine - No, Ble - Yes).
        - *Graham Ditch No. 9:* Awarded to Butler Masonry ($16,974.38). **Passed** (Roll Call: Whitehead - Yes, Hamilton - Yes, Migan - Yes, Ba - Yes).
        - *Hyatt Ditch No. 10:* Awarded to Butler Masonry ($14,368.20). **Passed** (Roll Call: Whitehead - Yes, Commissioner Rigan - Yes, Christine - Yes, Buffalo - Yes).
- 01:04:06 **Approval of Maintenance Claims**
    - **Sponsor / Presenter:** Tom Borchers / Board.

    - **Deliberation Summary:** Reviewed maintenance claims, noting approximately $33,000 paid to Butler Masonry for sinkholes and tile repairs accumulated over several months due to contractor scheduling and crop seasons.
    - **Action & Vote Disposition:** Approved as submitted. **Passed 5-0** (Roll Call: Whitehead - Yes, Hamilton - Yes, Wigan - Yes, Chie - Yes, Ba - Yes).
- 01:27:52 **Contractor Contract & Retention Policy Motion**
    - **Sponsor / Presenter:** Mr. Brook / Tom Borchers.
    - **Deliberation Summary:** Discussed requiring awarded contractors to sign a formalized contract incorporating a 20% retainage/collection clause for non-performance.
    - **Action & Vote Disposition:** Motion made that the surveyor deliver the draft contract to members for review, and subject to member approval, have contractors sign the contract for awarded debrushing work. **Passed** (Roll Call: Whitehead - Yes, Migan - Yes, Christie - Yes, Buffalo - Yes).

5. Open Public Comment / Citizen Forum

- 00:05:38 **Kirsten Cooper** (West County Road, 550 South, Daleville, IN): Addressed the board regarding severe swampy conditions and basement flooding on her 4-acre property, which she attributes to a neighbor building up a dam for a pond that blocks natural drainage and an old historic tile/drain. Surveyor Tom Borchers and board attorney Mr. Brook noted that the map line is not a regulated drain under board jurisdiction, meaning the board cannot maintain it or intervene with the neighbor's private surface water diversion, classifying it as a civil matter. They suggested exploring private contractor exploratory digs or discussing a mutual drain with neighbors.

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
    - Surveyor Tom Borchers provided updates on FEMA log jam funding coordination, GIS watershed mapping efforts across 60,000 parcels, and corner marker perpetuation contracts with Ashton and Randall Miller.
    - Board members discussed inquiries regarding legal expense reimbursement policies for property corner markers (handled via county commissioners/legal counsel) and Indiana American Water tax/assessment status regarding the reservoir.
- **Adjournment:** The meeting officially adjourned following a motion and unanimous voice vote (01:28:45).

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